

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS
AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT and THIRD PARTY COMPLAINANT,

v.

SAMSUNG ELECTRONICS CO., LTD., SAMSUNG SDS GLOBAL
SCL ASIA PACIFIC PTE LTD, and SAMSUNG ELECTRONICS
LOGITECH COMPANY, LIMITED,

THIRD PARTY RESPONDENTS.

**THIRD JOINT MOTION FOR ENLARGEMENT
OF TIME**

Pursuant to 46 C.F.R. § 502.102 of the Commission’s Rules of Practice and Procedure, Counsel to Complainant, Samsung Electronics America, Inc. (“SEA”) together with Counsel to Respondent, COSCO Shipping Lines Co., Ltd. (“COSCO”) (collectively, the “Parties”) jointly move to enlarge the discovery schedule set forth in the Presiding Officer’s June 2, 2025 Order Granting Joint Motion to Modify Schedule (the “Order”) by one (1) month for the limited purpose of pursuing an in-person mediation through the Federal Maritime Commission’s Consumer Affairs and Dispute Resolution Services Office (“CADRS”) the week of July 14, 2025.

On May 30, 2025, the Parties jointly filed a motion to modify the schedule for two weeks before discovery commenced. *See* Dkt. No. 42. During this time, the Parties served initial discovery requests, and the Parties conferred and held an expedited joint conference with CADRS on the morning of June 17, 2025, which lasted just over one hour. While the Parties separately met with CADRS previously, this joint meeting was arranged to efficiently address potential parameters for a mediation within the month.

During the joint conference with CADRS, counsel for the Parties addressed the manner in which an expedited mediation would be viable. Mr. Philip Lee, the most experienced CADRS representative, confirmed he would be able to conduct an in-person mediation at CADRS during the week of July 14, 2025, for counsel and their party representatives. Following the joint conference, Mr. Lee sent the draft agreement to mediate so that counsel could discuss it with their clients. Mr. Lee has also identified times for the mediation during the requested week. This evening, the parties have confirmed their party representatives are available on July 17 and 18 and we will be finalizing either of those dates for a full day mediation with CADRS tomorrow.

The Parties have good cause for this month-long enlargement. The Parties will submit mediation statements to CADRS and exchange them with counsel. If successful, mediation will limit time and resources expended if the Parties can resolve this matter, or, at least, get closer to settlement and/or narrow the issues. Yet, absent an enlargement of time, the current schedule, including the due date for completing document productions and beginning fact depositions, will likely impair mediation and may result in the parties expending unnecessary time and resources on extensive fact discovery. The enlargement of time would not impact the briefing of issues on the matter, including the motion to dismiss COSCO's counterclaim and any actions regarding the third-party claims alleged by COSCO.

The Parties also propose to submit a joint status report by July 21, 2025. Accordingly, the Parties request modification of the schedule as follows:

Current Due Date	New Due Date	Event
N/A	July 21, 2025	Joint Status Report
July 14, 2025	August 14, 2025	Document Production Completed, Fact Depositions Begin
July 21, 2025	August 21, 2025	Joint Status Report
August 25, 2025	September 25, 2025	Complete Fact Depositions
August 25, 2025	September 25, 2025	Expert Discovery Begins
September 29, 2025	October 29, 2025	Discovery Completed

For the foregoing reasons, Complainant and Respondent respectfully request an enlargement of one (1) month to allow the Parties to adequately prepare for and commence mediation through CADRS.

DATED: June 26, 2025

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By: /s/ Christopher R. Nolan

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Respectfully submitted,

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**ATTORNEYS FOR RESPONDENT,
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CERTIFICATE OF SERVICE

I certify that on this date, June 26, 2025, this Joint Motion was served upon the Federal Maritime Commission and the following via electronic mail:

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